

21STCV18077 21STCV18077

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MOTION TO SET ASIDE / VACATE

DISMISSAL

The Court tenders the following tentative decision in the matter Baltazar Lopez, et al. v. TPR Traffic Solutions, et al., Los Angeles County Superior Court case number 21STCV18077, set for hearing on July 1, 2026. A.M. Ortega Construction, Inc. (AMOC) moves to set aside the dismissal with prejudice of its Cross-Complaint entered by the Court on April 14, 2026, on the basis that such dismissal occurred due to inadvertence, mistake, or excusable neglect. No party identified in the Cross-Complaint has filed an opposition. AMOC's unopposed motion is granted.

A.

Legal

Standard

Under Code of Civil Procedure section 473, subdivision (d): "[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order."

B. Discussion

AMOC moves for relief from the dismissal with prejudice entered on April 14, 2026, on the grounds that it constitutes a clerical error. While courts do not generally retain jurisdiction

following a dismissal with prejudice, they may still vacate a dismissal entered as the result of a mistake or clerical error. (Basinger v. Rogers & Wells (1990) 220 Cal.App.3d 16, 21–23.) Under Code of Civil Procedure section 473, “[t]he court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (d).) Relief based on surprise is available where a party suffers

some condition in which he “is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against.” (Credit Managers Association of Southern California v. National Independent Business Alliance (1984) 162 Cal.App.3d 1166, 1173.)

Here, Counsel for AMOC filed the relevant Cross-Complaint on or about October 1, 2021. (Petze Decl. ¶ 3.) An insurer representing AMOC retained Resnick & Louis (R&L) as co-counsel defending AMOC in the same proceeding. (Id. ¶ 5.) R&L has never served as counsel of record for AMOC. (Id. ¶ 7.) Counsel was informed on April 22, 2026, that R&L had dismissed AMOC’s Cross-Complaint with prejudice on April 14. (Id. ¶ 11.) No one ever contacted Counsel or AMOC regarding this dismissal. (Id. ¶ 12.) Counsel discovered that R&L had filed the request for dismissal by mistake while processing the closing of AMOC’s file in their firm. (Id. ¶ 15.) R&L have refused to join the present motion. (Id. ¶ 17.)

The Court finds that the dismissal was entered as a result of surprise. AMOC and its counsel was completely unaware of R&L’s intent to dismiss the Cross-Complaint with prejudice and possessed no ability to stop the dismissal from occurring. The dismissal has the potential to injure AMOC, which sought to further prosecute the claims contained within the Cross-Complaint. (Id. ¶ 14.) Thus, relief is proper pursuant to Code of Civil Procedure section 473. Accordingly, AMOC’s unopposed motion is granted.

Conclusion:

The Court grants
the motion. 20 days to respond to cross-complaint.